

21STCV11790 21STCV11790

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-06-26

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C06%2F26%2F2026

Source SHA-256: 0ef4a045f30754e6788c568a0805f4b22371e600c976f46bf70f98613e7bc09c

Case Number: 21STCV11790 Hearing Date: June 26, 2026 Dept: F46

Dept. F-46

Hearing Date: June 24, 2026

Case Number: 21STCV11790 (Lead) / 21STCV11946 / 23CHCV00411

(3) PETITIONS TO APPROVE COMPROMISE OF PENDING ACTION ON
BEHALF OF MINORS

Petitions filed on May 19, 2026 and May 20, 2026.

MOVING PARTIES: Petitioners Katelyn Hiller, as guardian ad
litem for minors Kaylie Branch and Kylie Branch, and Chandra Rubio, as guardian
ad litem for minor Ian Rubio

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: Approval of minor's compromises for Kaylie
Branch, Kylie Branch, and Ian Rubio, and disposition of net settlement
proceeds.

RULING: Granted.

BACKGROUND

This action arises from a June 20, 2019 motor vehicle

incident near Bouquet Canyon Road and Lowe's Plaza in Santa Clarita. Defendant Ryan Scott Davis allegedly struck Katelyn Hiller's vehicle, in which minors Kaylie Branch and Kylie Branch were passengers. The force of impact caused Hiller's vehicle to collide with Chandra Rubio's vehicle, in which minor Ian Rubio was a passenger.

LEGAL STANDARD

Compromises of disputed claims brought by minors are governed in part by Code of Civil Procedure section 372. The statute allows a guardian ad litem to appear in court on behalf of a minor claimant and gives the guardian ad litem the power to compromise the minor's claim "with the approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise or covenant. (Cal. Rules of Court, rule 7.950.)

California Rules of Court, rule 7.952(a) requires the attendance of the petitioner and claimant at the hearing on the compromise of the claim unless the court, for good cause, dispenses with their personal appearance.

"Neither section 372 nor the California Rules of Court (rules 7.950 & 7.952) contemplates a noticed motion and adversary hearing when court approval of a minor's compromise is sought. Although we need not decide the question, it would appear that a petition to approve or disapprove a minor's compromise may be decided by the superior court, ex parte, in chambers." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337.)

California Rules of Court, rule 7.955(a) requires the Court to use "a reasonable fee standard" when approving and allowing the amount of attorneys' fees payable from money to be paid for the benefit of a minor, and requires that the Court "give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor . . . contemplated that the attorney's fee would be affected by later events."

California Rules of Court, rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney's fee. California Rules of Court, rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney's fee under rule 7.955(a) must include a declaration from the attorney that addresses the factors listed in rule 7.955(b) that are applicable to the matter before the Court.

DISCUSSION

A. Kaylie Branch

Petitioner Katelyn Hiller seeks approval of Kaylie Branch's \$6,000.00 settlement. Kaylie is 10 years old. (Pet., ¶2, p. 1.) Kaylie sustained soft-tissue injuries, including neck/upper back pain, low back pain, and a seatbelt-related neck abrasion/laceration, with irritability and mood swings associated with pain complaints. (Pet., ¶6, p. 2.) She was evaluated by her pediatrician shortly after the collision and treated with chiropractic care at Peak Performance Chiropractic / The Santa Clarita Chiropractor beginning July 2, 2019 through May 20, 2020. (Pet., ¶7, p. 2; Pet., Att. 7.) Kaylie has recovered completely with no permanent injuries. (Pet., ¶8(a), p. 2.)

The petition identifies \$3,084.87 in total medical expenses before reductions, \$2,066.21 in reductions, and \$1,018.66 to be paid from the settlement proceeds. (Pet., ¶12(a), p. 4.) The payments consist of \$1,000.00 to The Santa Clarita Chiropractor and \$18.66 to DHCS/Medi-Cal. (Pet., ¶12(b)(4)(c), p. 4; Pet., ¶12(b)(5), pp. 4-5; Pet., Att. 12b(4)(c).)

Petitioner requests attorney's fees of \$1,999.80, or approximately one-third of the gross settlement. (Pet., ¶13(a), p. 5; Pet., ¶16(c), p. 6.) Counsel's declaration addresses the contingent fee, litigation risk, work performed over six years, discovery, mediation and settlement work, lien negotiation, consolidation issues, and the absence of deducted costs. (Pet., Att. 13a.) No litigation costs are requested from Kaylie's recovery. (Pet., ¶13(b), p. 5; Pet., ¶16(d), p. 6.) The Court finds the requested attorney's fees and medical payments reasonable under the circumstances.

Petitioner requests that Kaylie's net recovery of \$2,981.54 be paid directly to Katelyn Hiller as Kaylie's parent and guardian ad litem,

without bond, under Probate Code sections 3401 and 3402. (Pet., ¶18(b)(5), p. 8.) The petition states the value of Kaylie's entire estate, including this net recovery, does not exceed \$5,000.00. (Pet., ¶18(b)(5), p. 8.) A blocked account order is not required.

The Court finds the settlement and proposed disposition of Kaylie's net proceeds are fair, reasonable, and in Kaylie's best interest. The Court grants the petition as to minor Kaylie Branch.

B. Kylie Branch

Petitioner Katelyn Hiller seeks approval of Kylie Branch's \$6,000.00 settlement. Kylie is 12 years old. (Pet., ¶2, p. 1.) Kylie sustained soft-tissue injuries, including neck/upper back and low back pain, tension headaches, seatbelt-related neck injuries, and accident-related psychological symptoms. (Pet., ¶6, p. 2.) She was evaluated by her pediatrician shortly after the collision, treated with chiropractic care at Peak Performance Chiropractic / The Santa Clarita Chiropractor beginning July 2, 2019 through May 20, 2020, and received psychological treatment beginning July 2, 2019. (Pet., ¶7, p. 2; Pet., Att. 12b(5).) Kylie has recovered completely with no permanent injuries. (Pet., ¶8(a), p. 2.)

The petition identifies \$5,928.57 in total medical expenses before reductions, \$3,588.39 in reductions, and \$2,340.18 to be paid from the settlement proceeds. (Pet., ¶12(a), p. 4.) The payments consist of \$1,000.00 to The Santa Clarita Chiropractor, \$1,300.00 to Susan Ashley, Ph.D. / Ashley Psychology Center, and \$40.18 to DHCS/Medi-Cal. (Pet., ¶12(b)(4)(c), p. 4; Pet., ¶12(b)(5), p. 5; Pet., Atts. 12b(4)(c), 12b(5).)

Petitioner requests attorney's fees of \$1,999.80, or approximately one-third of the gross settlement. (Pet., ¶13(a), p. 5; Pet., ¶16(c), p. 6.) Counsel's declaration addresses the contingent fee, litigation risk, work performed over six years, discovery, mediation and settlement work, lien negotiation, consolidation issues, and the absence of deducted costs. (Pet., Att. 13a.) No litigation costs are requested from Kylie's recovery. (Pet., ¶13(b), p. 5; Pet., ¶16(d), p. 6.) The Court finds the requested attorney's fees and medical payments reasonable under the circumstances.

Petitioner requests that Kylie's net recovery of \$1,660.02 be paid directly to Katelyn Hiller as Kylie's parent and guardian ad litem,

without bond, under Probate Code sections 3401 and 3402. (Pet., ¶18(b)(5), p. 8.) The petition states the value of Kylie's entire estate, including this net recovery, does not exceed \$5,000.00. (Pet., ¶18(b)(5), p. 8.) A blocked account order is not required.

The Court finds the settlement and proposed disposition of Kylie's net proceeds are fair, reasonable, and in Kylie's best interest. The Court grants the petition as to minor Kylie Branch.

C. Ian Rubio

Petitioner Chandra Rubio seeks approval of Ian Rubio's \$6,000.00 settlement. Ian is 9 years old. (Pet., ¶2, p. 1.) Ian's injuries consisted of a nosebleed with associated nose pain. The petition also states Ian had a prior seizure history and experienced another seizure about one week after the collision. (Pet., ¶6, p. 2.) Ian was transported by American Medical Response to Henry Mayo Newhall Hospital, evaluated in the emergency department, and later treated with Santa Clarita Emergency Medical Group and AFC Urgent Care. (Pet., ¶7, p. 2; Pet., Att. 12b(5).) Ian has recovered completely with no permanent injuries. (Pet., ¶8(a), p. 2.)

The petition identifies \$4,673.11 in total medical expenses before reductions, \$3,033.51 in payments by a health plan, and \$1,639.60 in reductions. (Pet., ¶12(a), p. 4.) The only reimbursement to be paid from Ian's settlement proceeds is \$100.00 to Anthem Blue Cross Blue Shield in full satisfaction of its lien rights. (Pet., ¶12(b)(2), p. 4; Pet., ¶16(b), p. 6.)

Petitioner requests attorney's fees of \$2,000.00, or one-third of the gross settlement. (Pet., ¶13(a), p. 5; Pet., ¶16(c), p. 6.) Counsel's declaration addresses the contingent fee, litigation risk, work performed over the life of the consolidated case, medical record review, mediation and settlement work, and the absence of deducted litigation costs. (Pet., Att. 13a.) No litigation costs are requested from Ian's recovery. (Pet., ¶13(b), p. 5; Pet., ¶16(d), p. 6.) The Court finds the requested attorney's fees and lien reimbursement reasonable under the circumstances.

Petitioner requests that Ian's net recovery of \$3,900.00 be paid directly to Chandra Rubio as Ian's parent and guardian ad litem, without bond, under Probate Code sections 3401 and 3402. (Pet., ¶18(b)(5), p. 8.) The petition states the value of Ian's entire estate, including this net recovery,

does not exceed \$5,000.00. (Pet., ¶18(b)(5), p. 8.) A blocked account order is not required.

The Court finds the settlement and proposed disposition of Ian's net proceeds are fair, reasonable, and in Ian's best interest.

CONCLUSION

Petitioner Katelyn Hiller's petitions to approve the minor's compromises for (1) Kaylie Branch and (2) Kylie Branch are GRANTED.

Petitioner Chandra Rubio's petition to approve the minor's compromise for Ian Rubio is GRANTED.

The Court will sign the proposed MC-351 orders as corrected to conform to the petitions.

Good cause appearing, the personal appearances of Petitioners and the minor claimants are dispensed with under California Rules of Court, rule 7.952(a)

On the Court's own motion, the: (1) Hearing on Petition to Confirm Minor's Compromise with Special Needs Trust concerning Kylie Branch scheduled for 06/26/2026 at 08:30 AM, (2) Hearing on Petition to Confirm Minor's Compromise with Special Needs Trust concerning Ian Rubio scheduled for 06/26/2026 at 08:30 AM, and (3) Hearing on Petition to Confirm Minor's Compromise with Special Needs Trust concerning Kaylie Branch scheduled for 06/29/2026 at 08:30 AM are advanced to this date and vacated.

Order to Show Cause Re: Dismissal is scheduled for August 5, 2026, at 08:30 AM in Department F46 at Chatsworth Courthouse.